

Court No. - 40

Case :- WRIT - C No. - 15680 of 2018

Petitioner :- Israr Husain

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Ajay Kumar Vashistha

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Herd learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the respondent Electricity Department.

The petitioner has come up contending that the citation of recovery issued against the petitioner is itself doubtful in view of the endorsement made by the Executive Engineer on the application filed by the petitioner on 19.03.2010. The aforesaid fact therefore indicates that the Executive Engineer has been approached by the petitioner for the redressal of his grievances and as a matter of fact it is the Executive Engineer who can redress the same if it is a billing dispute keeping in view the provisions of Clause 6.5 of the U.P. Electricity Supply Code, 2005.

If it is a dispute of assessment then the petitioner has a remedy under the Electricity Act itself but in the instance case this appears to be a billing dispute for which the Executive Engineer is the Competent Authority to resolve it himself instead of calling upon the Sub Divisional Officer to examine the correctness or otherwise of the alleged wrong bill.

In view of the aforesaid facts it would be appropriate that the recovery sought to be made from the petitioner is carried out after the Executive Engineer passes any appropriate order. We accordingly direct the petitioner to file a certified copy of this order before the fourth respondent within one week from today. The Executive Engineer shall after making an enquiry into the same pass an appropriate order within three weeks thereafter. The recovery shall abide by the orders to be passed by the Executive Engineer. The writ petition stands disposed with the said directions.

Order Date :- 1.5.2018

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